

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: September 28, 2026 at 1:30 pm

Rulings Posted: 9/24/26 at 11:30am

#	Case Name	Tentative
201	<i>Zurita vs. Joe MacPherson Infiniti</i>	Before the court is a motion to strike or tax costs filed by plaintiff Martin Zurita (Plaintiff). The motion is GRANTED. Defendant Joe Macpherson Infiniti dba AutoNation Infiniti Tustin (Defendant) was the prevailing party in this action. (ROA 100.) Judgment was subsequently entered and Defendant was permitted to recover costs. (ROA 111.) Although Defendant is the prevailing party in this action under Code of Civil Procedure section 1032, only certain costs are permitted to be recovered. Plaintiff moves to strike claimed transcript costs of \$2,176. Pursuant to Code of Civil Procedure section

		1033.5, subdivision (a)(9), transcript costs are only recoverable if they are ordered by the court. Otherwise, transcript costs are prohibited. (Code Civ. Proc., § 1033.5, subd. (b)(5).) As this court did not order transcripts, those costs are not recoverable by Defendant. (<i>Moore v. City & Cnty. of San Francisco</i> (1970) 5 Cal. App. 3d 728, 739–40.) Plaintiff shall give notice.
202	<i>Siguenza vs. Nynes Collectives LLC</i>	<u>Motion for Sanctions</u> Before the court is a motion for evidentiary sanctions, or alternatively, for monetary sanctions filed by plaintiffs Edward Siguenza and Nerherley Machuca Rivas (Plaintiffs together) related to depositions. The motion is DENIED. The court may issue evidentiary and/or monetary sanctions for abuses of the discovery process, including failure to comply with a court order or failure to submit to an authorized method of discovery. (Civ. Proc. Code §§ 2023.010, 2023.030, and 2025.450.) Plaintiffs contend defendants Nynes Collectives LLC, fka Global Beauty, Inc., and Allen Nguyen (Defendants together) failed to produced persons most knowledgeable and/or failed to appear at depositions previously ordered by the court. The court acknowledges there were issues with Defendants scheduling the depositions between the IDC hearing on September 8, 2025, and December, however the depositions do appear to have been on calendar in January. Plaintiffs’ counsel subsequently took those off calendar due to trial. (Haddad Decl. ¶ 25-26 and 30, Ex. 17.) Instead of immediately rescheduling the depositions, Plaintiffs waited almost four months before sending new notices of depositions. (Haddad Decl. ¶ 32.) When current defense counsel stated he had trial on those dates, defense counsel offered on two occasions the alternative date of the first week of June. (Rumm Decl. ¶¶ 6-7;

Haddad Reply Decl., Ex. 29.) Plaintiffs ignored the alternative dates and instead filed the present motion.

It appears to the court there is blame from both sides for the depositions not proceeding in a timely manner. As such, issuance of evidentiary sanctions would be improper and are denied. The request for monetary sanctions appears to be based solely on the expenses incurred with bringing the present motion. Monetary sanctions are also denied as there is no basis provided in the motion.

Motion for Leave to Amend

Before the court is a motion for leave to file a second amended complaint (SAC) filed by Plaintiffs. The motion is **GRANTED** in part and **DENIED** in part.

Plaintiffs move for leave to file the SAC pursuant to add as defendants Noel Bantugan (Bantugan), Chop Chop Fulfillment LLC (CCF), and Nynes Holding LLC (NHLLC). The court may permit amendment to the complaint pursuant to Code of Civil Procedure sections 473 and 576.

Plaintiffs contend they first learned about the potential liability of Bantugan and CCF on August 13, 2026, when they discovered the corporate defendants shared the same mailing address, office address, and agent for service of process. The SAC seeks to add the new defendants in for unnamed Does under alter ego and successor liability theories. The scope of the action is not being widened by new causes of action.

To add a defendant as a Doe, Plaintiffs must be ignorant as to both the true name of the defendant and sufficient facts which support liability. (Civ. Proc. Code § 474; *Gen. Motors Corp. v. Superior Ct.* (1996) 48 Cal. App. 4th 580, 593–95.)

Bantugan cannot be added as a Doe defendant as Plaintiffs were aware of Bantugan, his supervision of Siguenza, and his ability to hire and terminate Siguenza at the time the original complaint was filed. (ROA 2, 15.) As the basis for this case is wrongful termination and discrimination, Plaintiffs were aware of facts to support Bantugan as a defendant yet did not include Bantugan in either the original or first amended complaints. Plaintiffs were therefore not “ignorant” of Bantugan’s name or facts which would support liability against Bantugan. Although Plaintiffs argue they did not know the relevant facts about Bantugan being COO of Nynes and then founding CCF at the same address as Nynes until 2026, thereby supporting potential alter ego relationships between all of the defendants, Plaintiffs had sufficient facts regarding Bantugan being Plaintiffs supervisor with the ability to terminate Plaintiffs. This is sufficient to support that Bantugan should have been named in this wrongful termination matter in the original complaint.

The motion is **DENIED** as to Bantugan.

Plaintiffs appear to have been ignorant of both the names and facts which might support liability on the parts of CCF and NHLLC. This includes the alter ego and successor liability allegations. The court finds no real prejudice as to the defendants which might otherwise overcome the requirement for the court to liberally permit amendments.

The motion is **GRANTED** as to CCF and NHLLC.

The court will allow for a final trial continuance and will reopen discovery as to the new corporate entities and the depositions which Plaintiffs identified in the motion for sanctions above. Parties shall come ready to discuss trial dates.

Plaintiffs shall give notice.

203	<i>Nguyen vs. Stahl</i>	Plaintiffs Quang Nguyen and Chowdhury Yeethnam's motion for order for service of summons by publication is DENIED without prejudice. There is insufficient evidence Plaintiffs took reasonable steps to determine the addresses of defendants Ian Stahl and Anita Stahl (Defendants). (See <i>Watts v. Crawford</i> (1995) 10 Cal.4th 743, 749, n. 5 [the term "reasonable diligence" denotes "a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney"].) Plaintiffs' counsel relied exclusively on the efforts of Elijah Banez of ABC Legal Services to show reasonable diligence. (Declaration of Dimitri D. Hurt ¶¶ 3-6.) The declarations of out-of-state declarant Banez are not signed under penalty of perjury under the laws of the State of California and are thus inadmissible. (Code of Civ. Proc. § 2015.5.) Furthermore, there is insufficient evidence of the existence of a cause of action against Defendants. (Code of Civ. Proc. § 415.50, subd. (a).) Counsel's single paragraph in his declaration is not based on personal knowledge, lacks foundation and therefore insufficient. (<i>Islamic Republic of Iran v. Pahlavi</i> (1984) 160 Cal.App.3d 620, 627; see also Hurt Decl. ¶ 2.) The court continues the 9/28/26 OSC re: dismissal to serve complaint to 1/19/27 at 8:45am in Dept. C24. Plaintiff shall give notice of this ruling.
204	<i>Saldana-Gonzalez vs. Kia America Inc.</i>	Plaintiffs Andres Saldana-Gonzalez, Maria Olimpia Saldana and the Estate of Andres Saldana-Sorto's motion to admit counsel Daniel D. Walker to appear pro hac vice is CONTINUED to 10/12/26 at 1:30pm in Department C24. There is no proof of service of the verified application and notice of hearing on all parties who have appeared in the action and on the State Bar of California as

		required by California Rules of Court, rule 9.40(c)(1). Furthermore, the original and amended application reference the “Declaration of L. Jason Cornell” and a “proposed order” but no such documents have been filed and/or they are not included with the application. The hearing is continued to allow Plaintiffs to correct these deficiencies. Plaintiffs shall give notice.
205	<i>Guerrero vs. Grassy Sprain Group, Inc.</i>	The motion for judgment on the pleadings filed by defendant Grassy Sprain Group, Inc. (Defendant) directed to the first amended complaint (FAC) of plaintiff Mathew Guerrero (Plaintiff) is GRANTED with 30 days leave to amend as to the first through seventh, ninth through eleventh, and thirteenth causes of action, and GRANTED without leave to amend as to the eighth and twelfth causes of action. The parties’ requests for judicial notice are GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264.) <u>Eighth and Twelfth Causes of Action</u> In the Opposition, Plaintiff states he dismisses the eighth cause of action for malicious prosecution and the twelfth cause of action for intentional infliction of emotional distress. (See Opp. at p. 5:22-23.) The motion as to the eighth and twelfth causes of action is therefore GRANTED without leave to amend. <u>First and Thirteenth Causes of Action</u> Plaintiff’s equitable claims for declaratory relief and injunctive relief in the first and thirteenth causes of

action are based on the allegation the judgment in the Underlying Action is void because Defendant lacked standing to enforce the debt sued upon due to a “gap in the chain of title” for the debt. (See FAC ¶¶ 13, 56-57.) Plaintiff’s allegation there is a gap in the chain of title is based on the fact the Master Bill of Sale for the transfer of the debt from CBL Trust 2112 to Jefferies Mortgage Funding LLC post-dated the transfer. (See FAC ¶ 7 and Ex. B.) Specifically, the Master Bill of Sale attached to the FAC shows that the Master Bill of Sale was “executed as of November 20, 2018, with an effective date of September 22, 2014.” (FAC, Ex. B.)

Plaintiff alleges in the FAC because the Master Bill of Sale “did not exist until November 20, 2018, “no valid transfer to Jefferies Mortgage Funding LLC could have occurred prior to that date, and all purported downstream transfers from Jefferies to Defendant are invalid.” (FAC ¶ 7.) However, “[i]n the absence of [a] statute or a contract provision to the contrary, *there are no prescribed formalities that must be observed to make an effective assignment*. It is sufficient if the assignor has, in some fashion, manifested an intention to make a present transfer of his rights to the assignee.

[Citations.] Even oral assignments may be valid. [Citation.]” (*Hearn Pacific Corp. v. Second Generation Roofing, Inc.* (2016) 247 Cal.App.4th 117, 149 (internal citations and quotations omitted) (italics in original); see also, Civil Code § 1052 [“A transfer may be made without writing, in every case in which a writing is not expressly required by statute.”].)

Thus, simply because the Master Bill of Sale was executed after the effective date of the assignment does not establish the assignment is invalid. Plaintiff offers no authority in the Opposition showing the transfer of the debt was invalid under the circumstances alleged in the FAC and in light of the foregoing authorities, which were cited by Defendant in the motion. Plaintiff’s allegation there is a gap in the chain of title rendering all downstream transfers invalid is an unsupported

conclusion of fact and/or opinion which the court need not accept as true.

Plaintiff sets forth numerous extrinsic allegations in the Opposition regarding Defendant's claim of title and its purported invalidity. These facts are not pled in the FAC and thus may be disregarded. "The only issue involved in a [motion for judgment on the pleadings] is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.)

The motion as to the first and thirteenth causes of action is **GRANTED with 30 days leave to amend.**

Second through Seventh and Tenth through Eleventh Causes of Action

Defendant contends these causes of action are barred by the litigation privilege. (Civil Code § 47(b); see also, *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057, 1063-1065.)

Plaintiff failed to address this argument in the Opposition and thus an inference is created that the argument is meritorious. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410; see also, *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to oppose issue is treated as waiver].)

The motion as to the second through seventh and tenth through eleventh causes of action is **GRANTED with 30 days leave to amend.**

Ninth Cause of Action

As discussed above, the FAC fails to allege sufficient facts showing Defendant's title to the debt was invalid. The FAC thus necessarily also fails to show a violation of the Rosenthal Act occurred. This cause of action, like

		the other claims asserted, is based on the allegation the default judgment in the Underlying Action is void and thus Defendant's attempts to enforce the judgment constitute unfair debt collection practices. The motion as to the ninth cause of action is GRANTED with 30 days leave to amend on the grounds that the FAC does not show a violation of the Rosenthal Act occurred. The court continues the 9/28/26 CMC to 1/19/27 at 8:45am. Defendant shall give notice.
206	<i>Pratt vs. Speedtrack, Inc.</i>	Each of the four demurrers filed by defendants Miles Yano, Serry Osmena, Anna Flinn and Dennis Lee (collectively, Defendants) as to first amended complaint (FAC) filed by plaintiff Jeffrey Pratt (Plaintiff) is OVERRULED. Defendants shall file and serve their answers, if at all, within 10 days. <u>1st cause of action (failure to pay earned wages at termination)</u>: The FAC alleges facts showing Defendants were each personally involved in failing to pay Plaintiff's earned wages upon termination sufficient to constitute this cause of action. (Lab. Code § 558.1; <i>Usher v. White</i> (2021) 64 Cal.App.5th 883, 886; see also Lab. Code §§ 201, 203 and FAC ¶¶ 3-6, 13, 16, 17, 21, 23-26, 29-31, 39, 43, 63-68.) The court continues the 9/28/26 CMC to 1/19/27 at 8:45am in Dept. C24. Defendants shall give notice.
208	<i>Song vs. Kim</i>	Before the Court at present is the continued Claim of Exemption hearing, concerning assets levied upon by

Judgment Creditor Stacey Jihyun Song (Plaintiff) which are being held by Bank of America.

A default judgment was entered on 4/16/26 against Won Suk Kim aka Wonnie Kim, Erica Eun Ah Kim aka Erica Kim, Bella Assets, LLC, and Won Suk Kim Real Estate Inc. aka Kim Real Estate (Defendants) in the amount of \$155,022.63. Plaintiff subsequently obtained a Writ of Execution. (ROA 67.)

The Notice of Opposition to Claim of Exemption, filed by Plaintiff on 7/22/26, and the Sheriff's Notice re Claim of Exemption filed on 8/24/26, reflect that Bank of America (Bank), as Garnishee, had withheld what it describes as "\$39,349.22 in excess of the statutorily exempt amount from an account that receives direct deposit of Social security/public benefits payments" based on C.C.P. § 704.080 because it was "unable to determine if all or part of the funds are exempt." (ROA 85.) This hearing was thus set to consider any claim of exemption that might be presented related thereto.

To date, no valid claim of exemption has been filed. The Court notes that Judgment Debtor Won Kim attempted to file a Claim of Exemption on 9/21/26, which was rejected. But even if that Claim is considered, it fails to show any valid claim of exemption. On a claim of exemption, the judgment debtor has the burden of proof to show that an exemption applies. (See Code Civ. Proc. § 703.580, subd. (b).) The judgment debtor also has the burden to trace any funds claimed to be exempt based on their origin. (See Code Civ. Proc. § 703.080, subd. (b).) None of the Defendants have met that burden.

As Defendants have failed to demonstrate that any exemption applies, Bank may release any remaining funds to Plaintiff that are currently being held due to Plaintiff's levy (but for those that Bank has identified as coming from social security/public benefit payments in the amount protected by Code of Civil Procedure section

		704.080(b)(1) and/or (b)(2), as applicable), to the extent necessary to satisfy the judgment. Plaintiff shall give notice.
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